

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, AUGUST 7, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JPMORGAN CHASE BANK N.A. vs. BRANDON STEWART
Case No. CL24-02763**

Motions to Compel Discovery

TENTATIVE RULING

The Parties are to appear.

**IN THE MATTER OF DONAHUE DONAHUE DONAHUE LLC
Case No. CL26-06563**

Petition by ANTHONY SHERWIN DONAHUE and DONAHUE DONAHUE DONAHUE LLC to Release Mechanic's Lien

TENTATIVE RULING

Civil Code §8480 authorizes the filing of a petition for an order releasing property from a recorded mechanic's lien claim, by "[t]he owner of property or the owner of any interest in property".

The petition filed in this limited jurisdiction case identifies two different petitioners, without any specificity as to which owns what ownership interest in the subject property.

A petition for release order can be filed as a new action, before and/or without any pending action to foreclose the mechanic's lien.

However, a petition noticed for hearing is considered to be a motion.

C.C.P. §1003 clarifies that “An application for an order is a motion”.

One requirement for any motion filed in Solano County is that the notice of motion advise of the court’s tentative ruling system. Solano County Local Rule 3.9(d).

No mention of the tentative ruling system appears in the notice of hearing filed for this petition.

A petition for release of a mechanic’s lien must also “allege” an array of detailed information, and be “verified”. Civil Code §8484.

A petition for a release order shall be verified and shall allege all of the following:

- (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.
- (b) The county in which the claim of lien is recorded.
- (c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- (d) The legal description of the property subject to the claim of lien.
- (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- (g) Whether an action to enforce the lien is pending.
- (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

Legal description of a real property typically refers to recorded maps and provides metes and bounds surveying descriptions of boundaries. See, e.g., Lee v. Fidelity National Title Ins. Co. (2010) 188 Cal.App.4th 583, 588 n.1.

The subject petition did not provide a metes and bounds legal description, nor was any verification provided.

Finally, for a mechanic's lien whose claim amount exceeds \$35,000, the verified petition must be filed as an unlimited jurisdiction case, not as a limited jurisdiction case. C.C.P. §86(a)(6) provides:

The following civil cases and proceedings are limited civil cases:

. . .

- (6) An action to enforce and foreclose, or a petition to release, a lien arising under Chapter 4 (commencing with Section 8400) of Title 2 of Part 6 of Division 4 of the Civil Code, or to enforce and foreclose an assessment lien on a common interest development as defined in Section 4100 or 6534 of the Civil Code, if the amount of the liens is thirty-five thousand dollars (\$35,000) or less. However, if an action to enforce the lien affects property that is also affected by a similar pending action that is not a limited civil case, or if the total amount of liens sought to be foreclosed against the same property aggregates an amount in excess of thirty-five thousand dollars (\$35,000), the action is not a limited civil case.

The mechanic's lien amount claimed in the recorded mechanic's lien was \$42,935.00. Thus, the court has no jurisdiction in this limited jurisdiction filing to grant any petition for release of this mechanic's lien.

For all of these reasons, this petition is denied, without prejudice to filing a proper and complete verified petition in an unlimited jurisdiction case.

DEBRA YANCY vs. 1527 SPRINGS ROAD, LLC; ET AL.
Case No. CU25-08880

Plaintiff's Motion to Compel Defendant's Further Responses to Special Interrogatories

TENTATIVE RULING

Plaintiff DEBRA YANCY moves to compel Defendant 1527 SPRINGS ROAD, LLC to further respond to two special interrogatories. Plaintiff's complaint in this matter alleges that she was an elder resident at Defendant's care home following a hip replacement surgery. Plaintiff alleges that Defendant's negligence resulted in Plaintiff suffering several falls and attendant severe injury. The two interrogatories at issue here seek the identities of all of the other residents at Defendant's care home during Plaintiff's tenure there and the identities of their responsible parties (meaning the persons who assumed financial responsibility for the residents or who were their representatives).